

SOFTWARE SERVICES AGREEMENT

(Enterprise SaaS & Professional Services)

SERVICE PROVIDER	CLIENT
PixelForge Technologies Inc. 450 Innovation Drive, Suite 900 Austin, TX 78701 EIN: 47-3821059 Contact: contracts@pixelforge-tech.example	Orbis Financial Solutions LLC 1200 Market Street, Floor 22 Chicago, IL 60601 EIN: 36-4910283 Contact: legal@orbisfinancial.example

Effective Date:	January 15, 2025	Agreement No.:	SSA-2024-0047
Term:	24 Months	Governing Law:	State of Texas
Total Contract Value:	USD \$480,000	Payment Schedule:	Monthly Installments

RECITALS

WHEREAS, PixelForge Technologies Inc. ("Provider") is engaged in the business of developing and maintaining enterprise software platforms; and

WHEREAS, Orbis Financial Solutions LLC ("Client") desires to license and use certain software services offered by Provider under the terms and conditions set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

- 1.1 "Software"** — means the PixelForge Enterprise Suite v4.x, including the Analytics Dashboard, Risk Management Module, and API Gateway, as described in Exhibit A.
- 1.2 "Services"** — means implementation, configuration, training, and ongoing technical support provided by Provider as detailed in the Statement of Work (Exhibit B).
- 1.3 "Authorized Users"** — means Client's employees and contractors who are granted access rights to the Software, not to exceed 250 concurrent users without written amendment.
- 1.4 "Confidential Information"** — means all non-public information disclosed by either party that is designated confidential or that should reasonably be understood to be confidential given the nature of the information and circumstances of disclosure.
- 1.5 "SLA"** — means the Service Level Agreement set forth in Exhibit C, guaranteeing 99.5% uptime measured monthly, excluding Scheduled Maintenance Windows.

2. LICENSE GRANT & RESTRICTIONS

2.1 Grant. Subject to the terms hereof, Provider grants Client a non-exclusive, non-transferable, revocable license to access and use the Software solely for Client's internal business operations during the Term.

- 2.2 **Restrictions.** Client shall not: (a) sublicense, sell, resell, or otherwise transfer the Software to any third party; (b) modify, translate, or create derivative works based on the Software; (c) reverse engineer, disassemble, or decompile the Software; or (d) use the Software to provide services to third parties on a service bureau or time-sharing basis.
- 2.3 **Audit Rights.** Provider reserves the right to audit Client's use of the Software no more than once per calendar year with thirty (30) days' prior written notice to verify compliance with this Agreement.

3. FEES & PAYMENT TERMS

Component	Description	Monthly Fee (USD)
Platform License	Enterprise Suite v4.x — up to 250 users	\$14,500
Implementation	Amortized over 6 months	\$2,500
Support (Tier 2)	24x7 technical support + dedicated CSM	\$3,000
Total Monthly		\$20,000

- 3.1 Invoices are issued on the 1st of each month and are due Net-30. Late payments accrue interest at 1.5% per month. Provider may suspend Services after 15 days of non-payment following written notice.
- 3.2 All fees are exclusive of applicable taxes. Client is responsible for all sales, use, VAT, and similar taxes imposed by any taxing authority.

4. DATA PRIVACY & SECURITY

- 4.1 **Data Processing Agreement.** The parties acknowledge that Provider acts as a Data Processor with respect to any personal data processed on behalf of Client. A Data Processing Addendum (DPA) is incorporated herein by reference as Exhibit D.
- 4.2 **Security Standards.** Provider shall maintain industry-standard security measures including SOC 2 Type II compliance, AES-256 encryption at rest, TLS 1.3 in transit, and annual penetration testing by a qualified third-party firm.
- 4.3 **Breach Notification.** In the event of a confirmed security breach affecting Client's data, Provider shall notify Client within 72 hours of discovery and shall cooperate in investigating and remediating the breach.

5. INTELLECTUAL PROPERTY

- 5.1 Provider retains all right, title, and interest in the Software, including all updates, enhancements, and derivative works. Nothing in this Agreement transfers ownership of the Software or any underlying intellectual property to Client.
- 5.2 Client retains ownership of all data uploaded to or generated by the Software in connection with Client's business ("Client Data"). Provider is granted a limited license to use Client Data solely to provide the Services.

6. TERM & TERMINATION

- 6.1 **Term.** This Agreement commences on the Effective Date and continues for 24 months, automatically renewing for successive 12-month periods unless either party provides 90 days' written notice of non-renewal.
- 6.2 **Termination for Cause.** Either party may terminate this Agreement upon 30 days' written notice if the other party materially breaches any provision and fails to cure such breach within the notice period.
- 6.3 **Effect of Termination.** Upon termination, Client's access to the Software shall be revoked within 5 business days. Provider shall export and deliver Client Data in CSV format within 30 days at no additional charge.

7. LIMITATION OF LIABILITY & INDEMNIFICATION

- 7.1 NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.
- 7.2 Provider's total cumulative liability under this Agreement shall not exceed the total fees paid by Client in the 12-month period immediately preceding the event giving rise to the claim.
- 7.3 Client shall indemnify and hold harmless Provider from any claims arising from Client's breach of this Agreement or misuse of the Software in violation of applicable law.

8. DISPUTE RESOLUTION

Any dispute arising under this Agreement shall first be subject to good-faith negotiation for 30 days. If unresolved, disputes shall be submitted to binding arbitration under the American Arbitration Association (AAA) Commercial Arbitration Rules in Austin, Texas. The prevailing party shall be entitled to recover reasonable attorneys' fees.

SIGNATURES

PixelForge Technologies Inc.

Orbis Financial Solutions LLC

By: _____ Name: Marcus J. Holloway
Title: CEO

Signature

By: _____ Name: Priya K. Mehta Title: COO

Signature

Date

Date